

In opposition, Savin states that after substituting out is prior counsel, new counsel has arranged for the participation in binding arbitration before Judicate West and has executed the arbitration agreement with Judicate West. It asserts that the arbitration is assigned to Hon. Bryan F. Foster (Ret) and the parties are in the process of scheduling arbitration.

As of 6/24/26, no reply could be located on eCourt.

Analysis:

Based on the opposition, it appears that the motion is moot as to the request to enforce the 9/19/23 stipulation and order. It appears that the Judicate West arbitration agreement has been signed, an arbitrator has been selected, and the parties are awaiting a date for arbitration.

Crane also asks for nearly \$7,000 in sanctions under CCP § 128.5 for Savin's failure to execute the arbitration agreement with Judicate West. However, sanctions sought under CCP § 128.5 must be brought in a separate motion. (CCP § 128.5(f)(1).) They cannot be sought with other relief. (*Id.*) Additionally, under CCP § 128.5, the moving party is required to participate in a safe harbor period before filing a motion under this code section. (*Id.* at (f)(B).) There is no evidence that this requirement has been met. Due to these issues, the request for sanctions is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2302814	PORTERO COMMERCIAL LLC V. SOUTHLAND EQUITIES	HEARING ON EQUITABLE ISSUES TAKEN UNDER SUBMISSION

Tentative Ruling:

Briefing is submitted and matter is scheduled for oral argument on July 16, 2026 at 8:30 am.